Annexure – 4 Restrictions on Public Procurement - Instructions to bidders to be complied

Bidders are requested to comply with the below instructions without fail. Any bidder from a country which shares a land border with India will be eligible to bid in this tender only if the bidder is registered with the Competent Authority. The Competent Authority for the purpose of registration under this tender shall be

a) The Registration Committee constituted by the Department for Promotion of Industry and Internal Trade (DPIIT).
OR
b) The Registration Committee constituted by Government of Tamil Nadu consisting of the following members: -

1. Managing Director& Chief Executive Officer, Guidance (as Chairman)
2. Additional Chief Secretary to Government (Finance), or his representative
3. Principal Secretary to Government (Information Technology and Digital Services Department) or his representative
4. Principal Secretary to Government (Public Works Department) or his representative
5. Industries Commissioner and Director of Industries and Commerce. Definitions:

i. "Bidder" for the purpose of the tender(including the term 'tenderer', 'consultant', 'vendor' or 'service provider' in certain contexts) means any persons or firm or company, including any member of a consortium or joint venture (that is an association of several persons, or firms or companies), every artificial juridical person not falling in any of the descriptions of bidders stated hereinbefore, including any agency branch or office controlled by such person, participating in a procurement process.

ii. "Bidder from a country which shares a land border with India" for the purpose of this tender means
   a) An entity incorporated, established or registered in such a country; or
   b) A subsidiary of an entity incorporated, established or registered in such a country; or
   c) An entity substantially controlled through entities incorporated, established or registered in such a country; or
   d) An entity whose beneficial owner is situated in such a country; or
   e) An Indian (or other) agent of such an entity; or
   f) A natural person who is a citizen of such a country; or
   g) A consortium or joint venture where any member of the consortium or joint venture falls under any of the above. However, there are no restrictions in case of procurement of goods or services from the bidder from those Countries (even if sharing a land border with India) to which the Government of India has extended lines of credit or in which the Government of India is engaged in development Projects.

iii. The "Beneficial owner" for the purpose of (ii) above will be as under:

   1. In case of a company or Limited Liability Partnership, the beneficial owner is the natural person(s), who, whether acting alone or together, or through one or more juridical person(s), has a controlling ownership interest or who exercises control through other means.
   Explanation –

   a) "Controlling ownership interest" means ownership of, or entitlement to, more than twenty-five percent of shares or capital or profits of the company;

   b) "Control" shall include the right to appoint majority of the directors or to control the management or policy decisions, including by virtue of their shareholding or management rights or shareholders agreements or voting agreements.

   2. In case of a partnership firm, the beneficial owner is the natural person(s) who, whether acting alone or together, or through one or more juridical person, has ownership of entitlement to more than fifteen percent of capital or profits of the partnership;

3. In case of an unincorporated association or body of individuals, the beneficial owner is the natural person(s), who, whether acting alone or together, or through one or more juridical person, has ownership of or entitlement to more than fifteen percent of the property or capital or profits of such association or body of individuals;
4. Where no natural person is identified under (1) or (2) or (3) above, the beneficial owner is the relevant natural person who holds the position of senior managing official;
5. In case of a trust, the identification of beneficial owner(s) shall include identification of the author of the trust, the trustee, the beneficiaries with fifteen percent or more interest in the trust and any other natural person exercising ultimate effective control over the trust through a chain of control or ownership.
6. An 'agent' for the purpose of this tender is a person employed to do any act for another, or to represent another in dealings with third person.
7. The successful bidder shall not be allowed to sub-contract works to any contractor from a country which shares a land border with India unless such contractor is registered with the Competent Authority. The definition of a 'Contractor' from a Country which shares a land border with India' shall be as detailed in paragraph (ii) above. Each Bidder shall have to submit the Undertaking as per Annexure 5. Where applicable, the bidder shall have to submit the Certificate of Registration from the Competent Authority.

For Iliosdigital Private Limited,

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